

Ram Karan v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 26 August 2014 · WRIT - C No. 44346 of 2014 · **Writ disposed; EE to consider offer under Supply Code 2005**

HEADNOTE

On the petitioner's undertaking to clear dues on connection no. 053658, the writ was disposed of with liberty to place the offer before the Executive Engineer, who shall consider the request and pass appropriate orders in accordance with the Electricity Supply Code, 2005.

FACTUAL SUMMARY

Ram Karan filed a writ petition in the Allahabad High Court against Dakshinanchal Vidyut Vitran Nigam Ltd. concerning electricity connection no. 053658. After the matter was heard at length, counsel for the petitioner, on instructions, stated that the petitioner was prepared to clear any dues on that connection and that the connection should thereafter be modified or appropriate orders passed in respect of it.

HOLDING-UNITS

HOLDING-UNIT · UP-2005

consideration of consumer request after offer to clear dues

HOLDING

On the petitioner's undertaking to clear dues on connection no. 053658, the writ was disposed of with liberty to make the offer before the Executive Engineer, who shall consider the request and pass appropriate orders in accordance with the Electricity Supply Code, 2005. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy On the petitioner's undertaking to clear dues on connection no. 053658, the writ was disposed of with liberty to place the offer before the Executive Engineer, who shall consider the request and pass appropriate orders in accordance with the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — ENTITLEMENT TO MODIFICATION OF CONNECTION NO. 053658 AFTER CLEARANCE OF DUES
left to the Executive Engineer to consider in accordance with the Electricity Supply Code, 2005 ¶ 1